

Office of Enforcement and Removal Operations
ICE Health Service Corps

U.S. Department of Homeland Security
500 12th Street, SW
Washington, D.C. 20536



U.S. Immigration
and Customs
Enforcement

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SUBJECT: Mortality Review – Report of Findings
David HERNANDEZ-Colula, (b)(6),(b)(7)(C)

Executive Summary:

On February 20, 2020, U.S. Immigration and Customs Enforcement (ICE) Health Service Corps (IHSC) received notification of the death of ICE detainee David HERNANDEZ-Colula, (b)(6),(b)(7)(C). (b)(6),(b)(7)(C) During his detention period, ICE housed Mr. HERNANDEZ-Colula, a 34-year-old Mexican male, at the Northeast Ohio Correctional Center (NEOCC) in Youngstown, Ohio (OH), from December 10, 2019 to February 20, 2020. On February 21, 2020, the Cuyahoga County

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Medical Examiner's Office conducted an autopsy and determined Mr. HERNANDEZ-Colula's cause of death was hanging.

On December 4, 2019, prior to Mr. HERNANDEZ-Colula's custody and detention, the Sturgis Police Department (SPD) in Sturgis, Michigan (MI), encountered Mr. HERNANDEZ-Colula during a civil dispute with his spouse, arrested him for an outstanding warrant for domestic assault, and booked him in at the St. Joseph County Jail (SJCJ) in Centerville, MI. On December 5, 2019, the Pacific Enforcement Response Center in Laguna Nigel, California (CA), served an Immigration Detainer – Notice of Action, form I-247A, for Mr. HERNANDEZ-Colula. On December 6, 2019, ICE Enforcement and Removal Operations (ERO) Detroit arrested Mr. HERNANDEZ-Colula upon his release from SJCJ, booked him into ICE custody at the Calhoun County Jail (CCJ) in Battle Creek, MI, and later transferred him to NEOCC on December 10, 2019.

During medical intake screening at CCJ and NEOCC, Mr. HERNANDEZ-Colula denied any medical or mental health concerns. However, on December 12, 2019, at approximately 12:20 a.m., an NEOCC custody officer called a medical emergency after finding Mr. HERNANDEZ-Colula with a blanket tied around his neck. On arrival, a licensed practical nurse (LPN) assessed Mr. HERNANDEZ-Colula, and subsequently placed him in medical housing on suicide watch. Mr. HERNANDEZ-Colula remained on suicide watch until December 16, 2019, at which time a behavioral health provider (BHP) assessed him, determined he was no longer at risk for suicide, and discharged him to general population (GP). Mr. HERNANDEZ-Colula remained in GP for the remainder of his detention. From December 16, 2019 to February 19, 2020, NEOCC's BHPs routinely assessed and treated Mr. HERNANDEZ-Colula for anxiety by providing supportive counseling. On February 19, at approximately 2:01 p.m., a BHP documented Mr. HERNANDEZ-Colula "cited no current need, concerns, nor problems. [NEOCC] Security reported no odd or problematic behaviors."

On February 20, 2020, at approximately 1:09 a.m., an NEOCC custody officer found Mr. HERNANDEZ-Colula, with a towel around his neck, hanging from the bunk in his cell, and called a medical emergency. At approximately 1:10 a.m., NEOCC's emergency response team (ERT) arrived in the unit, cut the ligature from Mr. HERNANDEZ-Colula's neck, and began cardiopulmonary resuscitation (CPR). At approximately 1:24 a.m., emergency medical services (EMS) personnel arrived, assumed care of Mr. HERNANDEZ-Colula, and transported him to St. Elizabeth Youngstown Hospital (SEYH) in Youngstown, OH. At approximately 1:49 a.m., while en route to the hospital, an SEYH emergency department (ED) physician pronounced Mr. HERNANDEZ-Colula deceased.

Mortality Finding:

As a result of Mr. HERNANDEZ-Colula's death, the IHSC Assistant Director requested a mortality review to learn from his death, by reviewing the care provided and the circumstances

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leading up to his death. The goal of the mortality review is to determine the appropriateness of clinical care; ascertain whether the changes to policies, procedures, or practices are warranted; and identify issues that require further study.

A mortality review committee (MRC) determined Mr. HERNANDEZ-Colula's medical care at NEOCC was not provided within the safe limits of practice. Specifically, the inconsistent use of interpreter services directly impacted the BHP's ability to establish a rapport with Mr. HERNANDEZ-Colula, or fully assess his mental health status, which directly contributed to his death. An IHSC Behavioral Health psychological autopsy is pending.

The MRC convened on January 28, 2021, and consisted of the following IHSC staff members: Dr. (b)(6),(b)(7)(C),(b)(7)(F) MD, western regional clinical director, physician reviewer; Captain (CAPT) (b)(6),(b)(7)(C),(b)(7)(F) certified nurse practitioner (NP-C), western regional advanced practice provider, advanced practice provider (APP) reviewer; CAPT (b)(6),(b)(7)(C),(b)(7)(F) registered nurse (RN), Chief, Nursing Services Unit, nurse reviewer; and Commander (CDR) (b)(6),(b)(7)(C),(b)(7)(F) PsyD., behavioral health clinical consultant, mental health reviewer.

The following summary of events were based on: 1) Mr. HERNANDEZ-Colula's CCJ and NEOCC medical records, and EMS and community hospital records; 2) incident and notification reports; 3) ICE ENFORCE Alien Removal Module (EARM) and ICE ENFORCE Alien Detention Module (EADM) database records; 4) Mr. HERNANDEZ-Colula's NEOCC detention file; 5) Mr. HERNANDEZ-Colula's autopsy report; 6) visual recordings from February 19, 2020; 7) an on-site review and staff interviews conducted by fact-finder CDR (b)(6),(b)(7)(C),(b)(7)(F) and Investigative Analyst CDR (b)(6),(b)(7)(C),(b)(7)(F) at NEOCC on March 10 thru 12, 2020; and 8) applicable NEOCC and ICE Detention Standards.

Detailed Medical Review

On December 6, 2019, a CCJ custody officer completed Mr. HERNANDEZ-Colula's intake screening. He denied a history of medical or mental health conditions. A nurse (unknown credentials) reviewed and signed the intake screening, and cleared him for housing in GP. Mr. HERNANDEZ-Colula did not request medical care while at CCJ.

On December 10, 2019, ERO transferred Mr. HERNANDEZ-Colula to NEOCC. An LPN completed Mr. HERNANDEZ-Colula's intake screening, and again, he denied history of any medical or mental health conditions. The LPN submitted routine referrals to a medical provider, dentist, and a BHP.

On December 11, 2019, a BHP completed Mr. HERNANDEZ-Colula's initial comprehensive mental health evaluation. He denied any current mental health concerns.

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On December 13, 2019, at approximately 12:20 a.m., via radio, an NEOCC custody officer called a medical emergency after finding Mr. HERNANDEZ-Colula with a blanket tied around his neck. An LPN responded, assessed Mr. HERNANDEZ-Colula for injuries, contacted the psychiatrist, who ordered Mr. HERNANDEZ-Colula's placement in medical housing on "suicide precautions with constant watch," and scheduled a follow-up appointment with a BHP.

On December 13, 2019, a BHP evaluated Mr. HERNANDEZ-Colula related to his suicide attempt. He reported having a panic attack the previous day due to "being in jail for the first time, and not being able to contact his wife and children," and denied further thoughts of self-harm. The BHP completed a suicide risk assessment and documented the following: risk factors – impulsive behavior, anxiety, agitation, fearful, relationship loss/problems; and protective factors – supportive spouse, children at home, future orientation, supportive friends and family, religious beliefs, willingness to discuss and address problems, and absence of symptoms of psychosis. The BHP documented Mr. HERNANDEZ-Colula wanted to contact his wife and children, and work with ICE and his attorney to be reunified with them. The BHP recommended continuation of constant observation, and scheduled a follow-up appointment for December 16, 2019. *[Investigator's note: the BHP did not note a DSM-V diagnosis.]*

Between December 14 and 16, 2019, while Mr. HERNANDEZ-Colula remained on suicide watch, NEOCC nursing staff completed twice-daily mental health nursing checks. He denied further thoughts of self-harm or other mental health concerns.

On December 16, 2019, a BHP evaluated Mr. HERNANDEZ-Colula for a follow-up appointment. The BHP completed a suicide risk assessment which revealed no risk factors, and recommended discontinuing his constant observation and return to GP. The BHP consulted with the psychiatrist, who agreed with the recommended plan. The BHP discontinued the constant observation, and Mr. HERNANDEZ-Colula returned to GP.

Between December 16 and 20, 2019, the BHP conducted daily visits with Mr. HERNANDEZ-Colula, who reported feeling much better, and denied thoughts of self-harm or issues adjusting to GP.

On January 3, 2020, a BHP evaluated Mr. HERNANDEZ-Colula, who reported difficulty sleeping and feeling anxious at times. The BHP noted Mr. HERNANDEZ-Colula's recent history of suicide watch, and referred him to the psychiatrist.

On January 8, 2020, the psychiatrist evaluated Mr. HERNANDEZ-Colula due to the BHP's referral. Mr. HERNANDEZ-Colula reported sleeplessness and decreased energy. The psychiatrist noted Mr. HERNANDEZ-Colula's mental status exam as: restless behavior; anxious mood; and constricted affect, diagnosed him with anxiety, and prescribed hydroxyzine (a medication to treat anxiety) for pill line administration.

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[Investigator's note: Per the medication administration records (MARs), Mr. HERNANDEZ-Colula took his medication routinely.]

- On the same date, a BHP evaluated Mr. HERNANDEZ-Colula, who denied current concerns.

On January 22, 2020, a BHP evaluated Mr. HERNANDEZ-Colula for a post-suicide precaution follow up and to offer supportive counseling. Mr. HERNANDEZ-Colula reported he was coping adequately, and denied concerns, needs, or problems.

On January 29, 2020, the psychiatrist evaluated Mr. HERNANDEZ-Colula for a follow-up appointment and medication response. The psychiatrist noted Mr. HERNANDEZ-Colula's mental status exam as: cooperative behavior; anxious mood; and constricted affect. Mr. HERNANDEZ-Colula reported taking his medication as prescribed, and that the medications helped with his symptoms of anxiety and insomnia. He denied thoughts of self-harm, or other mental health concerns. The psychiatrist continued his medication, and scheduled a thirty-day follow-up appointment.

On February 19, 2020, a BHP evaluated Mr. HERNANDEZ-Colula for a post-suicide precaution follow up and to offer supportive counseling. The BHP documented the custody officer reported no odd, nor problematic behaviors, and Mr. HERNANDEZ-Colula denied concerns, needs, or problems.

On February 20, 2020, at approximately 1:09 a.m., a custody officer found Mr. HERNANDEZ-Colula hanging, with a towel ligature around his neck, from the bunk in his cell, and called a medical emergency via radio. *[Investigator's note: Mr. HERNANDEZ-Colula was alone in a double occupancy cell.]*

- At approximately 1:10 a.m., NEOCC's ERT arrived in the unit, entered the cell, cut the ligature, placed Mr. HERNANDEZ-Colula on the floor, and began CPR.
- At approximately 1:12 a.m., NEOCC's medical staff arrived, applied an automatic external defibrillator (AED) to Mr. HENRANDEZ-Colula's chest, and continued CPR.
- At approximately 1:24 a.m., EMS personnel arrived, and assumed care of Mr. HERNANDEZ-Colula.
- At approximately 1:45 a.m., EMS personnel transported Mr. HERNANDEZ-Colula to SEYH.
- At approximately 1:49 a.m., while en route to the hospital, an SEYH ED physician pronounced Mr. HERNANDEZ-Colula deceased.

On February 21, 2020, the Cuyahoga County Medical Examiner's Office performed an autopsy, and determined Mr. HERNANDEZ-Colula's cause of death was hanging.

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Detention standards used for this review: ICE Performance-Based National Detention Standards (PBNDS) 2011, (revised December 2016) and NEOCC policies and procedures.

The following is a summary of health care delivery/program strengths, weaknesses, and recommendations found during this review:

Strengths

Strengths identified during this investigation were: 1) the frequency of mental health follow-up visits after the December 12, 2019 incident; 2) the presence of a strong facility training program as evidenced by the knowledge demonstrated by all NEOCC custody officers, regardless of experience; 3) timely and effective on-site critical incident debriefing for all staff and detainees affected by this death; 4) the nurse manager and NEOCC medical department's level of preparation related to PBNDS standards; 5) evidence of facility-wide teamwork among all staff; 5) and, most importantly, NEOCC's medical staff were receptive to this review process, looked forward to receiving constructive feedback, and made immediate corrections while investigators were on-site.

Weaknesses

1. Documentation

- On December 13, 2019, NEOCC medical staff assessed Mr. HERANDEZ-Colula after custody staff reported he attempted suicide, and placed him on suicide watch; however, the nurse did not document an assessment.
- During staff interviews, NEOCC medical staff reported often utilizing interpreter services and/or bilingual staff to interpret for limited English proficient detainees; however, they did not consistently document the utilization of interpreters in the medical record.

Applicable standards of care for this finding:

- PBNDS 2011: 4.3, Medical Care; section B.B. *Medical Records*.
- NEOCC Policy 13–58.4, section B2, *Medical Records*.
- Ohio Board of Nursing, *Scopes of Practice: Registered Nurses (RNs) and Licensed Practical Nurses (LPNs)*., October 2019. www.nursing.ohio.gov

2. Care

- On December 13, 2019, an LPN assessed Mr. HERNANDEZ-Colula after he was found with a blanket tied around his neck. In accordance with the Ohio's Board of Nursing, this level of assessment is beyond an LPN's scope of practice.

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- A qualified health care provider did not evaluate Mr. HERANDEZ-Colula daily while on suicide watch. *[Investigators note: During the interview, the health services administrator (HSA) reported due to (b)(7)(E) at the time, NEOCC could not meet the standard. NEOCC medical (b)(7)(E) prior to the site visit.]*

Applicable standards of care for this finding:

- PBNDS 2011: 4.6, Significant Self-harm and Suicide Prevention and Intervention; section D. *Evaluation.*
- NEOCC Policy 13–84.4, section C2, Suicide Management - *Safe Housing/Supervision.*
- Ohio Board of Nursing, *Scopes of Practice: Registered Nurses (RNs) and Licensed Practical Nurses (LPNs)*, October 2019. www.nursing.ohio.gov

3. Communication and language services

- NEOCC medical staff did not consistently utilize interpreter services when evaluating Mr. HERNANDEZ-Colula.
- During the interview, the BHP reported Mr. HERNANDEZ-Colula “understood enough” [English]; therefore, the BHP did not consistently utilize language services.

Applicable standards of care for this finding:

- PBNDS 2011: 4.3, Medical Care; section V. E. *Translation and Language Access for Detainees with Limited English Proficiency.*

4. Emergency Response

- NEOCC staff responding to the medical emergency did not apply a cervical collar around Mr. HERNANDEZ-Colula’s neck, and did not initially inform EMS personnel that he was found hanging; thereby, delaying stabilization of his neck and spine.
- NEOCC medical staff did not complete NEOCC form 13-34A1 (Facility Emergency Flow Sheet) and provide the form to the transport team or EMS.
- NEOCC security did not prepare to escort Mr. HERNANDEZ-Colula to the hospital until EMS transferred him from the housing unit to the ambulance, which caused a delay in EMS personnel exiting the facility.

Applicable standards of care for this finding:

- PBNDS 2011: 4.3, Medical Care; section V.T. *Emergency Medical Services and First Aid.*
- NEOCC Policy 13–34.4F, Medical Emergency Response - *Response.*

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- NEOCC Policy 13–34.4G, Medical Emergency Response - *Record of Events and Required Documentation*.

Recommendations

- Forward these findings to the IHSC Deputy Assistant Director of Health Care Compliance (DAD-HCC).
- The IHSC DAD-HCC will share these findings through appropriate communication channels to ICE.
- ICE did not renew the contract with NEOCC in February 2020, for reasons unrelated to this incident, and has not housed detainees at the facility since February 27, 2020.

End of report.